

Samraggi Mukherjee vs Word Power Communications Private ... on 5 September, 2019

Author: Ashis Kumar Chakraborty

Bench: Ashis Kumar Chakraborty

OD-9

EC 134 of 2019

IN THE HIGH COURT AT CALCUTTA
Ordinary Original Civil Jurisdiction
ORIGINAL SIDE

SAMRAGGI MUKHERJEE
VERSUS
WORD POWER COMMUNICATIONS PRIVATE LIMITED AND ANOTHER

BEFORE:

The Hon'ble JUSTICE ASHIS KUMAR CHAKRABORTY

Date : 5th September, 2019.

Appearance:

Mr. Reetobroto Mitra, Adv.

Mr. Ayan Chakraborty, Adv.

Mr. H.R. Singh, Adv.

...for the petitioner.

Mr. Siddhartha Banerjee, Adv.

Mr. Sajal Kumar Ghosh, Adv.

Ms. Sutapa Dutta, Adv.

...for the respondents.

The Court : Learned Counsel appearing for both the parties submit that there is no scope for passing any order in this execution application without a fresh application under Section 13-B of the Hindu Marriage Act, 1955 being filed before the learned District Judge at Alipore, South 24 Parganas and a decree being passed therein.

Accordingly, hearing of this application is adjourned till June 30, 2010. If the parties file a fresh application for mutual divorce they would be at liberty to approach the learned District Judge at Alipore, South 24-Parganas for early disposal of such application.

Let this application appear in the list, under the heading 'To Be Mentioned', on November 5, 2019 to ascertain if the parties file the fresh application for mutual divorce.

(ASHIS KUMAR CHAKRABORTY, J.) s.pal